

Stereo. H C J D A-38.
JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Civil Revision No.1904 of 2015

Nazar Hussain & others

Versus

Mudassar Hussain & others

J U D G M E N T

Date of hearing: 09.02.2026.
Petitioners by: Syed Muhammad Kaleem Ahmad Khurshid,
Advocate.
Respondents by: M/s. Malik Muhammad Nadeem and Ch.
Muhammad Shahid Mahmood, Advocates
(for respondents No.1 to 4).
Ch. Muhammad Ashraf, Advocate (for
respondents No.6 to 8).

MUHAMMAD SAJID MEHMOOD SETHI, J.- Through the instant revision petition, the petitioners have assailed the concurrent judgments and decrees dated 21.05.2013 and 30.04.2015, passed by the learned Civil Judge and Additional District Judge, Sheikhpura, respectively, whereby the suit instituted by respondents No.1 to 4 was decreed and the subsequent alienations made by respondent No.9 Muhammad Azam were declared ineffective to the extent of land measuring 113-Kanals 16-Marlas covered by a pre-emption decree dated 13.05.1978.

2. Briefly stated, respondents No.1 to 4 instituted a suit seeking declaration of their title and invalidation of the subsequent transfers relating to the decreed land, and perpetual injunction. The learned Trial Court, after framing issues, recording evidence, and hearing arguments of the parties, decreed the suit vide judgment and decree dated 21.05.2013, declaring the impugned transfers ineffective to the extent of 113-Kanals 16-Marlas. The appeal preferred by the petitioners No.1 to 15 was dismissed vide judgment and decree dated 30.04.2015,

passed by the learned Additional District Judge, thereby maintaining the decree. Hence, the present revision petition.

3. Learned counsel for the petitioners primarily contends that the alleged pre-emption decree was neither validly proved nor lawfully executed, as no documentary proof of deposit of *Zar-e-Shufa*, execution proceedings, or warrant of possession was produced, and that the decree appears to have been based on compromise and subsequently amended without proof of execution within limitation. He further argues that the learned Courts below relied upon marked documents, photocopies, and documents produced through statement of counsel, which are inadmissible under the *Qanun-e-Shahadat* Order, 1984, and that withholding of best evidence warrants adverse presumption under Article 129 thereof. He adds that mutation No.159 was never lawfully sanctioned, and its validity could not be adjudicated without production of relevant record. He maintains that the suit was not maintainable as the petitioners were in possession, necessary parties including the Province of Punjab were not impleaded, and the Civil Court's jurisdiction was barred in view of alternate statutory remedies. Lastly, he contends that the petitioners are *bona fide* purchasers whose prior transactions are protected under Section 48 of the Transfer of Property Act, 1882, and that the concurrent decrees, having been based on inadmissible and insufficient evidence, are liable to be set aside. He has relied upon *Niamatullah Shah v. Farmanullah and another* (1980 SCMR 953), *Malik Amir Khan v. Muhammad Ishaque and others* (1991 SCMR 1483), *Sughran Bibi v. Mst. Aziz Begum and 4 others* (1996 SCMR 137), *Shah Muhammad and 2 others v. Dulla and 2 others* (2000 SCMR 1588), *Rab Nawaz and others v. Muhammad Ali through Legal Representative* (2007 SCMR 1120), *Government of Balochistan, CWPP&H Department and others* (2010 SCMR 115), *Registrar, Lahore High Court, Lahore v. Muhammad Naveed Hashmi and another* (PLJ 2011 SC 49), *State Life Insurance Corporation of Pakistan and another v. Javaid Iqbal* (2011 SCMR 1013), *Administrator, Thal Development through EACO Bhakkar and others v. Ali Muhammad* (2012 SCMR 730), *Abdul Rehman and another v. Zia-ul-Haque Makhdoom and others* (2012

SCMR 954), Muhammad Nawaz alias Nawaza and others v. Member Judicial Board of Revenue and others (2014 SCMR 914), Muhammad Akram through L.Rs v. Mst. Noor Begum through L.Rs. and others (PLD 2019 Supreme Court 599), Sikandar Hayat and another v. Sughran Bibi and 6 others (2020 SCMR 214), Muhammad Siddique (deceased) through LRs and others v. Mst. Noor Bibi (deceased) through LRs and others (2020 SCMR 483), Ghulam Muhammad v. Zohran Bibi and others (2021 SCMR 19), Mst. Akhtar Sultana v. Major Retd. Muzaffar Khan Malik through his legal heirs and others (PLD 2021 Supreme Court 715) and Manzoor Ahmad v. Chiragh Khan (deceased) through LRs (2025 MLD 573).

4. Conversely, learned counsel for respondents No.1 to 4 submits that the pre-emption decree dated 13.05.1978 was duly implemented through sanction of mutation No.159 and delivery of possession, as reflected in revenue records, Khasra Girdawari, and testimonies of witnesses. He contends that no separate execution proceedings were required, and the decree, having been acted upon and inherited through mutations, stands fully implemented. He maintains that the petitioners are estopped from disputing the decree or its implementation, having failed to challenge mutation No.159 or the decree itself. He argues that the Civil Court had competent jurisdiction to adjudicate title and validity of subsequent mutations. He further contends that the petitioners led no rebuttal evidence and cannot claim superior rights. He relies upon Ghulam Rasool through L.Rs. and others v. Muhammad Hussain and others (PLD 2011 Supreme Court 119), Muhammad Iqbal v. Mehboob Alam (2015 SCMR 21), Ghulam Muhammad v. Zohran Bibi and others (2021 SCMR 19), Muhammad Adnan v. SalahOud0Din(2025 SCMR 653) and Abdul Sattar and 5 others v. Mureed and others (2008 MLD 822).

5. Learned counsel for respondents No.6 to 8 contends that the land measuring 113 Kanals 16 Marlas (property No.1) was pre-empted and its possession remained with respondents No.1 to 4. He submits that respondents No.6 to 8 never purchased any portion of the pre-empted land but acquired a separate inherited estate (property No.2) through valid mutations for valuable consideration and they are *bona fide*

purchasers without notice. He maintains that the petitioners cannot raise new grounds under Sections 43 and 48 of the Transfer of Property Act in revision before this Court.

6. Arguments heard. Available record perused.

7. The genesis of the present lis traces back to agricultural land measuring 113-Kanals 16-Marlas situated in the revenue estate of Village Thatha Bahadar Shah, Tehsil and District Sheikhupura. The said land was originally owned by Habib Ali Shah and, upon his demise, devolved upon his legal heirs through inheritance mutation. Thereafter, the share of one co-sharer was sold to respondent No.9 Muhammad Azam vide oral sale mutation in 1971. This sale was challenged through a suit for pre-emption instituted under the Punjab Pre-emption Act, 1913, which culminated in a decree dated 13.05.1978 in favour of Mst. Ashraf Sultana alias Sultana Ashraf. The decree attained finality. In implementation thereof, mutation No.159 was entered in the revenue record and possession was reflected in favour of the decree-holder. Although the mutation was subsequently cancelled on a technical ground, the decree was amended and mutation No.159 was restored by the competent revenue authority; the restoration order was never assailed by the judgment-debtor.

8. During the interregnum, Muhammad Azam effected several alienations of the same decreed land in favour of different vendees through various mutations. Separately, he also inherited other property through mutation No.552, which was subsequently transferred to different persons, including respondents No.6 to 8. Alleging that the alienations relating to the pre-empted land were void and ineffective in view of the subsisting decree and restored mutation, respondents No.1 to 4 instituted the present suit seeking declaration of title and cancellation of subsequent transfers to the extent of the decreed land. The learned Trial Court, upon appraisal of oral and documentary evidence, decreed the suit to the extent of land covered by the pre-emption decree while protecting transfers relating to inherited property. The learned Appellate Court affirmed the findings.

9. The contentions advanced by the petitioners are without merit and are clearly repelled by the settled facts and record. The pre-

emption decree dated 13.05.1978 was duly passed by a competent Court and attained finality, having been implemented through mutation No.159 in the revenue record, with possession duly delivered to the decree-holder. The petitioners, as successors-in-interest of Muhammad Azam, cannot challenge the decree or its implementation, as they have stepped into the shoes of a judgment-debtor who never assailed the decree or the restoration of mutation No.159. The allegations regarding non-production of execution proceedings, *Zar-e-Shufa*, or technical defects in mutation are belied by the documentary evidence, *Jamabandi* entries, revenue record, and oral testimony, which establish actual possession and effective implementation of the decree. Moreover, respondents No.6, 7, and 8 acquired entirely separate inherited property through valid mutations for valuable consideration without notice, and their rights are unaffected by the dispute concerning the pre-empted land.

10. The cornerstone of the controversy is the pre-emption decree dated 13.05.1978. The learned Courts below concurrently held that the decree was genuine, duly passed by a competent Court, and had attained finality. The allegation of forgery remained a bald assertion unsupported by evidence. No proceedings were initiated to have the decree set aside. Even the original vendor, Muhammad Azam, never challenged the decree. Once a decree attains finality, it cannot be collaterally impeached in subsequent proceedings without cogent proof of fraud or nullity. No such material has been produced.

11. The learned Courts below found that mutation No.159 was sanctioned in implementation of the decree and that possession followed. The *Halqa Patwari* appeared and proved the relevant revenue entries. Although mutation No.159 was at one stage cancelled on a technical ground, it was subsequently restored by the competent revenue authority. The restoration order was never challenged by the petitioners or their predecessor. An unchallenged order of a competent authority attains finality and binds the parties. The temporary cancellation on a clerical ground did not invalidate the decree itself.

12. There is no cavil with the settled proposition that documents i.e. Exh.P-1 to Exh.P-5 (copies of Mutation No.159, *Khasra Girdawari*

and *Jamabandi*) could not have been formally exhibited through the statement of learned counsel, as such a course is not recognized by law. Documents are required to be proved in accordance with the prescribed mode of evidence and through a competent witness. However, in the present case, the concerned Halqa Patwari appeared in the witness box and specifically deposed regarding the authenticity and genuineness of the aforementioned revenue record. He not only identified the documents but also affirmed that they were true copies of entries maintained in the official record. Once the competent custodian of the record entered the witness box and proved the documents in accordance with law, the earlier procedural irregularity in their exhibition stood effectively cured. In these circumstances, the objection raised with respect to the mode of exhibition loses its significance and becomes inconsequential, as the substantive requirement of proof has been duly satisfied. Furthermore, the petitioners did not lead any evidence to rebut or controvert the said documents; thus, the entries contained therein remained unchallenged and carried their full evidentiary value.

13. The revenue record, *Jamabandi* entries, and oral testimony were carefully examined by both the learned Courts below. The findings that the mutation was implemented and possession delivered are factual in nature and supported by documentary evidence maintained in official course. No misreading or non-reading has been demonstrated. The objection regarding non-production of execution proceedings or strict proof of deposit of *Zar-e-Shufa* loses significance once it is established that the decree was acted upon in revenue record and possession was delivered. Evidence on record reflects that payment was made in Court and that the decree stood implemented. After lapse of decades, such technical objections cannot unsettle rights crystallized through a decree of competent jurisdiction.

14. As regards the subsequent mutations, the same were sanctioned after cancellation of mutation No.159 and pertained to the same land measuring 113 Kanals 16 Marlas. Upon comparative examination of *Jamabandis* and mutation entries, the learned Courts concluded that the alienations overlapped with the pre-empted land. The plea of *bona*

fide purchase was examined in detail. It is a settled principle that a transferee cannot acquire a better title than that possessed by his transferor. Muhammad Azam, having suffered a decree which attained finality, lacked authority to alienate the pre-empted land. Consequently, purchasers stepped into his shoes and could not claim superior rights. Significantly, the learned Courts below protected purchasers to the extent of land inherited by Muhammad Azam through a subsequent mutation, thereby demonstrating a balanced and reasoned approach.

15. The objection raised by the petitioners under Sections 43 and 48 of the Transfer of Property Act, 1882 is misconceived and cannot be entertained at this stage. The record shows that no such plea was raised before the learned Trial Court nor pressed before the learned Appellate Court. No foundation was laid in the pleadings, no issue was framed, and no evidence was led to attract the application of the said provisions. It is settled that a new contention involving factual inquiry cannot be introduced for the first time in revisional jurisdiction. Both Sections 43 and 48 are fact-dependent provisions requiring specific pleadings and proof regarding representations, acquisition of title, and competing transfers. In absence of such foundational facts, their applicability cannot be examined. Reference can be made to Mst. Saeedan and 4 others v. Mst. Hajran and others (1991 MLD 1554), Iqbal v. Pahoo Mal (1995 MLD 1064), Muhammad Siddique v. Mhammad Yaqoob and 4 others(1997 MLD 1108) and Muhammad Ali v. Rabnawaz and 14 others (2001 YLR 1282).

16. The argument of learned counsel for the petitioners that the learned Courts below placed reliance upon marked documents and photocopies, which, according to him, were inadmissible in evidence, is not borne out from the record. A careful perusal of the judgments reveals that the findings have primarily been based upon duly exhibited documents and oral evidence produced in accordance with law. It is well-established that a marked document cannot ordinarily be read in evidence, however mere reference to a marked document does not vitiate the entire proceedings unless it is shown that the ultimate conclusions were founded solely upon inadmissible material. The

petitioners have failed to demonstrate that any material finding rests exclusively on such documents or that any objection regarding mode of proof was raised at the appropriate stage. Having acquiesced in the proceedings before the Trial Court, they cannot now be permitted to assail the judgment on a technical ground. Reliance is placed upon Mst. Hameeda Begum and others v. Mst. Irshad Begum and others (2007 SCMR 996), Mst. Nasim Begum and others v. Muhammad Nawaz and others (2021 CLC 1269) and Mst. Afia Ambrine v. Additional District Judge, Sialkot and 14 others (PLD 2025 Lahore 124).

17. As regards the plea that necessary parties, including the Province of Punjab, were not impleaded, the same is equally untenable. The petitioners neither raised any specific objection before the Trial Court seeking impleadment of the Province nor moved any application under Order I Rule 10 CPC for that purpose. It is well-settled that a necessary party is one without whom no effective decree can be passed. In the present case, the dispute was essentially inter se between necessary parties. The absence of a party against whom no substantive relief is sought does not invalidate the proceedings. Reference is made to Muhammad Arif and others v. District and Sessions Judge, Sialkot and others (2011 SCMR 1591) and Muhammad Siddiq (deceased) through LRs and others v. Mst. Noor Bibi (deceased) through LRs. And others (2020 SCMR 483).

18. The objection regarding lack of jurisdiction is misconceived. The suit sought declaration of title and invalidation of subsequent transfers. Revenue authorities are not competent to finally adjudicate questions of title. Even the competent revenue authority observed that the matter required determination by a Civil Court. Thus, the Civil Court rightly exercised jurisdiction. The petitioners are successors of the original judgment-debtor. The decree having attained finality and restoration order remaining unchallenged, the principle of estoppel operates against them. Rights determined decades earlier cannot be reopened on speculative pleas. The case law cited by learned counsel for the petitioners is clearly distinguishable from the facts and circumstances of the present case and, therefore, does not advance the petitioners' case. The factual matrix, as well as the legal questions

involved therein, is materially different from those arising in the instant matter, hence the ratio laid down in the cited precedent is not attracted here.

19. It is also noteworthy that despite opportunities, the petitioners failed to produce rebuttal evidence on material issues. The burden lay upon them to substantiate pleas of forgery, limitation, and *bona fide* purchase. Their failure cannot be converted into a ground for revisional interference. Even otherwise, it is settled that in exercise of revisional jurisdiction, this Court does not act as a Court of appeal. Interference is warranted only where findings suffer from jurisdictional defect, material illegality, misreading or non-reading of evidence, or patent perversity. Re-appraisal of evidence merely because another view is possible is impermissible. No jurisdictional defect, material illegality, misreading or non-reading of evidence, or perversity has been demonstrated so as to justify interference in revisional jurisdiction.

20. Consequently, this revision petition, being devoid of merit, is **dismissed**. The impugned concurrent judgments and decrees are upheld. No order as to costs.

(Muhammad Sajid Mehmood Sethi)
Judge

APPROVED FOR REPORTING

Judge

Sultan / A.H.S.